



1239 D Street
Salida, CO 81201

PERFORMANCE AGREEMENT
PARTIES

PURCHASER: CONTACT PERSON: ADDRESS: TELEPHONE: EMAIL: WEBSITE:	PERFORMER: Santa Rios CONTACT PERSON: Trevor "Bones" Davis TELEPHONE: 719-207-3422 EMAIL: bonesdrums@gmail.com
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ENGAGEMENT

STAGE NAME OF ARTIST/BAND: Santa Rios, Santana Tribute
DATE OF ENGAGEMENT:
LOAD-IN/SOUND CHECK TIME:
PERFORMANCE START TIME:
LENGTH OF PERFORMANCE: _____

1st Set Break 2nd Set Encores Curfew

TICKET PRICE: \$ _____

ARTIST FEE: \$ _____

STAGE: Minimum 24'x16' with 18"x8'x8' center drum riser and 2; 12"x 8'x 4' flanking risers.

SOUND: Purchaser will provide professional Front of House and Monitor engineers.

The sound system must have a minimum of 32 channels, be of professional grade, and include delay, reverb and compression, have at least 12 Monitor mixes with separate EQs and be capable of covering the entire venue at full capacity.

Sound system must be set according to stage plot and monitors rung out prior to band's arrival

LIGHTING: Purchaser will provide a professional lighting technician and system to cover the stage. A computer controlled projector and screen for our backdrop MPEG should be behind drum riser as well as a hazer.

NUMBER OF INTERMISSIONS: 1

RIDER REQUIREMENTS:

MEALS: A square meal will be provided by the producer for the 9 performers and one crew-member following sound-check.

DRESSING ROOMS: A dressing room will be provided for artists to change in before performance, at intermission and after show.

Hospitality: Snacks, 12 Mexican Lagers, 6 Stouts and 6 IPAs, a small bottle of 100% agave tequila, a case of bottled water and 9 towels will be provided in green room upon the band's arrival.

LODGING: 910 beds will be provided at _____

PARKING: Secure parking will be provided for 4 vehicles, one with a trailer, adjacent to stage as well as at lodging.

A deposit of ½ Artist Fee made payable to:

Rok Skool LLC will be sent to the address at the top of contract upon signing contract.

A check for the balance, payable to Rok Skool, will be given to Bones upon the band's arrival at the venue.

1. Indemnity, Insurance and Governmental Immunity Act. To the extent permitted by law, each party to this Agreement shall hold harmless and indemnify the other party, including the other party's employees, officers, agents, and assigns, from award of damages, to the extent such award of damages arises from the action or inaction of that party's own officers, employees and agents.

Nothing herein shall be interpreted as a waiver of governmental immunity, to which the other parties would otherwise be entitled under C.R.S. §24-10-101, et seq. as amended.

2. Entire Agreement. This Agreement, **along with any addendums and attachments hereto**, constitutes the entire agreement between the parties. The provisions of this Agreement may be amended at any time by the mutual consent of both parties. The parties shall not be bound by any other agreements, either written or oral, except as set forth in this Agreement.

3. Governing Law. The laws of the State of Colorado shall govern the validity, performance and enforcement of this Agreement. Venue for any action instituted pursuant to this agreement shall lie in Chaffee County, Colorado.

4. Authority. Each person signing this Agreement, **and any addendums or attachments hereto**, represents and warrants that said person is fully authorized to enter into and execute this Agreement and to bind the party it represents to the terms and conditions hereof.

5. Independent Contractor. Performers are acting as independent contractors, not as employees. Performers assume responsibility for the report and payment of their own sales taxes and withholding taxes, Social Security contributions, unemployment insurance and workers' compensation.

6. Promotional Materials. Performers hereby authorize Paddle Fest the use of video or photos taken at the event for promotional purposes on the Paddle Fest and CKS web site and/or in printed materials. Performers may withdraw this right, at any time, by stating so in an email addressed or written letter.

7. Force majeure/Inclement weather

A. Purchaser's obligation to furnish the entertainment unit referred to herein is subject to the detention or prevention by sickness, inability to perform, accident, means of transportation, Acts of God, riots, strikes, labor difficulties, epidemics and any act or order of any public authority, or any cause, similar or dissimilar, beyond Artist's control.

B. Provided ARTIST is ready, willing and able to perform, PURCHASER agrees to compensate ARTIST, in accordance with the terms hereof, regardless of Acts of God, fire, accident, riot, strike or any events of any kind whatsoever, whether similar or dissimilar to the foregoing events which would prevent or interfere with the presentation of the show hereunder. Notwithstanding anything contained herein, inclement weather shall not be deemed to be a force majeure occurrence and the PURCHASER shall remain liable for payment of the full contract price, even if the performance called for herein are prevented by such weather conditions. ARTIST shall have the sole right to determine in good faith whether conditions shall render the performance impossible, hazardous, or unsafe.

8. INSURANCE

A. Purchaser must carry public liability and property damage insurance with sufficiently high limits to adequately insure against bodily injury, death, or loss of or damage to property in connection with a part of the performance.

B. Purchaser shall also indemnify Artist against any and all loss, damage and/or destruction occurring to Artist, their employees, contractors and agents, and equipment at the venue, including but not limited to damage or destruction due to acts of God.

9. SECURITY: Purchaser shall provide proper security to ensure the safety of the Audience, Artist and Artist's equipment at all times, before, during and after performance.

Purchaser Signature

Date

Representative Name Printed

Venue

Trevor Davis, Santa Rios

Date